

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel DiRocco	Team: Team # 3	CCRB Case #: 201305998	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 06/29/2013 11:57 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/29/2014	Precinct: 114
Date/Time CV Reported Sun, 06/30/2013 4:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/05/2013 2:06 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Dennis Friendly	29185	930185	PSA 9
2. Officers			PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mikelang Zidor	27521	946412	PSA 9
2. POM Richard Hicks	05776	949105	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	A . Complainant Uncooperative
B . SGT Dennis Friendly	Force: Sergeant Dennis Friendly used pepper spray against § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On June 30, 2013, Sergeant Dennis Friendly, from PSA 9, called the IAB Command Center to report two injured prisoners: § 87(2)(b) and § 87(2)(b). On July 5, 2013, the case was received by the CCRB under IAB log number 13-28432.

Between July 11, 2013, and August 25, 2013, two unreturned please call letters were mailed to § 87(2)(b) and § 87(2)(b) respectively, and three unreturned e-mails were sent to § 87(2)(b). In addition, five telephone calls were placed to both § 87(2)(b) and § 87(2)(b).

On each of the first four telephone call attempts, a voicemail message was left. On the fifth call, which took place on August 13, 2013, the undersigned spoke with § 87(2)(b) directly. § 87(2)(b) stated that § 87(2)(b) was his fiancée and confirmed both his and § 87(2)(b)'s contact information, as had already been on record with the CCRB.

During the above telephone conversation, § 87(2)(b) stated that, based on advice from his criminal defense attorney, he was unsure if he wanted to provide a sworn statement to the CCRB. The undersigned explained to § 87(2)(b) that the case could not be held open indefinitely and informed § 87(2)(b) that, should the case be closed, he could petition the CCRB's agency counsel to have it reopened at a later date. The undersigned asked that either he or § 87(2)(b) contact the CCRB by August 16, 2013, with a decision as to whether one or both would pursue the complaint.

As of August 25, 2013, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB. A search of the New York City Department of Correction Inmate Tracking System website, performed on the same date, confirmed that neither of the two is currently incarcerated.

§ 87(2)(g)

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date